

Civil Misc. Writ Petition No.62046 of 2010

M/s Sunita Ispat (Pvt.) Ltd.

Vs. U.P. Power Corporation Ltd. & Ors.

Hon. Sunil Ambwani, J.

Hon. R.D. Khare, J.

Shri Ranjit Saxena, learned counsel for the petitioner states that he had earlier filed Writ Petition No.57700 of 2010 on behalf of the same petitioner M/s Sunita Ispat (Pvt.) Ltd. challenging the recovery of electricity dues of the same bill for the month of July 2010, for which a notice under Section 3 of the U.P. Electricity Recovery of Dues Act, 1958 was challenged. He submits that thereafter a citation has been issued. In the earlier writ petition the Court has fixed 19th October, 2010. He states that he filed application on 6th October, 2010 on which he has been permitted to withdraw the writ petition on 7.10.2010 with liberty to file fresh writ petition.

By this writ petition the petitioner has prayed for following reliefs:-

"(i) to issue a writ, order or direction in the nature of certiorari quashing the impugned orders dated nil under Section 5 of the U.P. Govt. Electricity Recovery Dues Act, 1958(Annexure No.18 of the writ petition) and citation dated 4.10.2010 (Annexure No.19 of the writ petition).

(ii) issue a writ, order or direction in the nature as the Hon'ble Court may deem fit and proper under the circumstances of this case.

(iii) Award the cost of the petition to the petitioner."

It is submitted by Shri Saxena that M/s Sunita Ispat (Pvt.) Ltd., the petitioner was sanctioned a contacted loan of 4000 KVA for running induction furnace, for manufacture of steel in-gots and the supply of the energy is received from 33 KV Sub Station. The petitioner entered into agreement of

lease with M/s Bihariji Marketing Pvt. Ltd. and handed over the entire possession of the property to M/s Bihariji Marketing Pvt. Ltd. on 17.6.2009. The petitioner applied for transfer of the sanctioned load to the lessee and deposited the requisite fees of Rs.500/- along with application under Clause 4.4(d) of the U.P. Electricity Supply code, 2005. The application was to be decided within 21 days. The application is still pending and that bills are still being raised in the name of the petitioner. Shri Saxena submits that the bills from the month of June 2009 were paid by M/s Bihariji Marketing Pvt. Ltd., for the petitioner w.e.f. June, 2009 to June 2010. The bills were being raised in the name of the petitioner and were paid by Bihariji Marketing Pvt. Ltd., as the name of consumer in the bill was not changed inspite of application filed for that purpose on 17.6.2009.

It is contended that for some reasons M/s Bihariji Marketing Pvt. Ltd.-respondent No.6 did not pay the bill in July 2010 payable by 16th August, 2010 for Rs.32,81,580/- for which impugned recovery has been issued.

Shri Saxena submits that the petitioner has given reply to the notice for recovery, which has not been considered by the Executive Engineer, Electricity Distribution Division-1, U.P. Power Corporation, Muzaffar Nagar and that now coercive process is being adopted.

Shri Saxena relies upon the definition of 'consumer' in the U.P. Electricity Act, 2003 in Section 2 (15); U.P. Electricity Supply Code, 2005 Section 2.2B and the U.P. Government Electricity Undertaking (Recovery of Dues) Act, 1958 to support his submission that occupier of the business premise is liable to pay the electricity bills.

Shri Ram Kumar Sharma holding brief of Shri Pankaj Kumar Shukla states that the earlier writ petition was not withdrawn in the presence of Shri Pankaj Kumar Shukla,

learned counsel for the respondents. He is still to verify whether any liberty was given to the petitioner to file fresh writ petition. He would submit that in any case the facts on which liability is being challenged are highly disputed. He states that he would like to file reply for giving reasons as to why application for change of name of consumer (mutation), if it has been submitted, has not been allowed so far. He also submits that until the application for mutation is allowed, the bills are to be paid by the persons in whose name the load has been sanctioned. He submits that the bills annexed to the writ petition have been paid in the name of M/s Sunita Ispat (Pvt.) Ltd. The petitioner has not raised any objection to the bill under Clause 6.5 (a), which provides for complaints to be registered with the concerned authority and corrections, if any, required to be made in the next bill. Clause 6.5 (a) further provides that in such case the consumer shall be required to make payment before due date. The bills of the induction furnace are raised on the basis of fixed charges. If the petitioner wants the bills to be paid by the lessee, it is open for him to make appropriate representation after depositing the electricity bill.

Upon hearing the parties, we find it appropriate to call for reply from the respondents, and to find out reasons as to why bills alleged to be paid by Bihariji Marketing Pvt. Ltd., has not been paid for the month of July, 2010.

Shri Pankaj Kumar Shukla has accepted notice on behalf of respondent Nos.1 to 4. Learned Standing Counsel appears for respondent Nos.5 and 7.

Issue notice to respondent No.6. Steps in three days. The petitioner will be at liberty to serve the respondent No.6 by Dasti summons.

The counter affidavit may be filed within ten days. The rejoinder affidavit may be filed within three days, thereafter. List on 28th October, 2010.

As an interim measure, we provide that in case bill for the month of July, 2010 payable by 16th August, 2010 is paid along with the old payment surcharge or the interest as the case may be, within a week from today, the respondents shall not press the recovery by coercive methods. The respondents will also decide the petitioner's application, if it is made within a week for correction of the name in the bill, with reference to the mutation application filed along with the requisite charges on 17.6.2009.

Dt.08.10.2010

SP/

Court No. - 36

Case :- WRIT - C No. - 62046 of 2010

Petitioner :- M/S Sunta Ispat (Pvt.) Ltd. Ther

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ranjit Saxena

Respondent Counsel :- C.S.C., Pankaj Kumar, Ram Kumar Sharma

Hon'ble R.K. Agrawal, J.

Hon'ble Rajesh Chandra, J.

Passed over on account of illness slip of Mr. Ranjeet Saxena,
learned counsel for the petitioner.

Order Date :- 28.10.2010

M/A.

Court No. - 36

Case :- WRIT - C No. - 62046 of 2010

Petitioner :- M/S Sunta Ispat (Pvt.) Ltd. Ther

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ranjit Saxena

Respondent Counsel :- C.S.C., Pankaj Kumar, Ram Kumar Sharma

Hon'ble R.K. Agrawal, J.

Hon'ble Rajesh Chandra, J.

As prayed, counter affidavit be filed within 3 weeks and no more.

List thereafter.

Order Date :- 9.11.2010

n.u.

Court No. - 36

Case :- WRIT - C No. - 62046 of 2010

Petitioner :- M/S Sunta Ispat (Pvt.) Ltd. Ther

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Ranjit Saxena

Respondent Counsel :- C.S.C., Pankaj Kumar, Ram Kumar
Sharma

Hon'ble Ashok Bhushan, J.

Hon'ble Shyam Shankar Tiwari, J.

List correctly in the next cause list showing the name of Pankaj Kumar Shukla, as counsel for the respondent.

Order Date :- 8.12.2010

Ram Murti

Court No. - 32

Case :- WRIT - C No. - 62046 of 2010

Petitioner :- M/S Sunta Ispat (Pvt.) Ltd. Ther

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C., Pankaj Kumar, Pankaj Kumar Shukla, Ram Kumar Sharma

Hon'ble Rakesh Tiwari, J.

Hon'ble Shashi Kant, J.

1. Case is taken up in revised list.
2. None appears for the petitioner. Learned Standing Counsel is present.
3. The writ petition is dismissed for want of prosecution.
4. Interim order, if any, stands vacated.

Order Date :- 19.1.2016

P.P.